

Devendra Sharma v. State of U.P. & Others

Allahabad High Court · Division Bench · 14 July 2011 · WRIT - C No. 38285 of 2011 · **Writ petition allowed (reconnection ordered; Rs. 10,000 costs)**

HEADNOTE

Clause 4.4 of the U.P. Electricity Supply Code, 2005 governs the processing of applications for a new connection, not the disconnection of an existing one; a dispute between landlord and tenant (or an allegedly incorrect tenancy declaration) is no ground to disconnect a validly sanctioned connection on which bills are regularly paid. A valid connection may be disconnected only on grounds authorised by the Electricity Act, 2003 and the Code (theft, unauthorised use, non-payment); disconnection for extraneous or malafide reasons is not merely a statutory breach but a violation of the right to life under Article 21.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Clause 4.4 governs new connections, not disconnection over a landlord-tenant dispute

QUESTION

Can a licensee invoke Clause 4.4 to disconnect an existing, validly sanctioned connection because of a landlord-tenant dispute or an allegedly incorrect tenancy declaration?

HOLDING

No. Clause 4.4 applies to new-connection applications, not to disconnecting an existing connection. A landlord-tenant dispute is not a ground to cut a valid connection on which bills are paid; a connection may be disconnected only on grounds authorised by the Act/Code (theft, unauthorised use, non-payment). The disconnection here was illegal, arbitrary and malafide, and offended Article 21. ¶ 6-11

LIMITING FACTS

The tenant's connection (bills regularly paid) was disconnected on the landlady's complaint that she had terminated the tenancy and filed an eviction suit, without any inspection, theft/unauthorised-use allegation or non-payment.

PRINCIPLE TAGS

disconnection-not-for-landlord-tenant-dispute A landlord-tenant or ownership dispute is not a ground to disconnect a validly sanctioned electricity connection; the Code's new-connection procedure cannot be turned to that use. ¶ 6-8, 11

right-to-electricity-art21 Supply of electricity is necessary for a life with dignity; disconnection for reasons not authorised by the Act/Code, for malafide purposes, violates Article 21. ¶ 10